Telangana, Karnataka, Jharkhand, Bihar, J&K, Haryana and Puducherry, already have it. Nitish has reaped rich dividends from the sub-categorisation of ignored Dalit castes such as Mahadalits in Bihar. The BJP, which initially followed the same path in UP, now fears that slicing the OBC quota could alienate the dominant OBC castes that had started moving towards the party, or whom it is keen to appropriate. Also, as Prashant K. Trivedi, associate professor at the Lucknow-based Giri Institute of Developmental Studies, points out, "The BJP might have realised that sub-categorisation could prove to be counterproductive, since a number of dominant OBC castes now support the party."

What could work for the BJP is the fact that the Bihar survey does not necessarily reflect any profound change in the demographic distribution of the Hindu backward classes. According to Prof. J.K. Bajaj, former chairperson of the Indian Council for Social Sciences Research and also a member of the Rohini Commission, the survey estimates Bihar's Hindu OBC groups to be 46 per cent of the population, two percentage points higher than the Mandal Commission estimate of 44 per cent, since it also counts Banias among the OBCs. "It's after adding 17 per cent Muslim OBCs that the total backward class count jumped to 63 per cent. The Mandal Commission had pegged them at 8 per cent, taking the total OBC count to 52 per cent." However, the biggest thing in the BJP's favour could be the caste identity of the prime minister himself, who is a "Modh-Ghanchi", a caste that traditionally ran kirana shops and oil-pressing units and was granted OBC status in 1994.

THE LOGJAMS AHEAD

The Opposition's enthusiasm for a caste census and the BJP's reluctance for it stem from the prospect of triggering new caste assertions and possibly changing electoral outcomes. Opposition parties argue that a caste census with updated and accurate data will pave the way for a reservation policy that truly reflects social justice. Even the NCBC has recommended a caste census. It won't be that simple, though. A caste census is certain to increase competitive demands for more reservation, and by more communities. Already, it is felt that the OBCs, numbering 52 per cent in 1931, deserve more than the 27 per cent reservation they currently get in government jobs and education, especially since the Bihar caste survey indicates that their number could be far higher. Already, Nitish is demanding a quota within women's reservation for OBC women.

At any rate, the government cannot arbitrarily increase the share of OBC reservation due to a legal roadblock. In 1992, the Supreme Court ruled that caste-based reservation in jobs cannot exceed 50 per cent. Since SCs/STs corner 23 per cent, there is little scope for any hike in the OBC share. Almost all Opposition parties have demanded that this cap be now removed through parliamentary intervention. Several state governments have in the past breached this cap by extending reservations to various communities for political convenience, even though the judiciary has overturned most such attempts.

There are logistical hurdles as well. For one, any such exercise cannot be conducted in a hurry. And given the long lead time it will entail, it could well end up becoming

THE SHIFTING GOALPOSTS

HOW DIFFERENT PARTIES HAVE CHANGED POSITION ON CASTE COUNT AND RESERVATION POLICY

THE BJP



In 1990, the **V.P. Singh** government, which implemented Mandal Commission recommendations giving 27 per cent reservation to OBCs in government jobs, was in power with BJP support. The BJP withdrew support only after L.K. Advani's arrest during the Rath Yatra



In 2010, BJP MP **Gopinath Munde** made a speech in Parliament demanding a national caste census. The next year, Congress-led UPA conducted a Socio Economic and Caste Census, but neither the UPA nor the NDA government published its results. In 2021,

THE BJP ITSELF IS OPEN TO THE IDEA OF **STATES CONDUCTING A CASTE CENSUS** BUT ONLY FOR THE PURPOSE OF "DESIGNING WELFARE PROGRAMMES BETTER"